

**LANDLORD'S GUIDE TO
NONPAYMENT EVICTION PROCEEDINGS**
For Courts Outside New York City



**New York State Unified Court System
Office of Trial Court Support
May 2025**

Table of Contents

Introduction	1
DIY (Do-It-Yourself) Program	2
Where to start an eviction case	2
What to do before starting a non-payment eviction case.....	3
How to start a non-payment eviction case.....	3
Serving court papers	4
What happens in court?	5
What are the differences between settlement, mediation, and trial?	6
The judge's decision.....	7
After a judgment.....	8
Forms	9
5-Day Notice of Past Due Rent	10
Written Demand for Past Due Rent.....	11
Notice of Petition – Nonpayment.....	18
Eviction Petition – Nonpayment	20
Glossary	28

Introduction

This guide helps landlords who do not have a lawyer. It covers legal procedures to remove (evict) tenants from a rental property when they fail to pay rent.

A similar guide gives tenants information about how to respond when a landlord files an eviction case against them.

The two most common reasons a landlord wants to evict a tenant are when the tenant:

- Fails to pay the rent
- Fails to leave the property after their right to stay ends

When one of these things happens, a landlord can start a civil lawsuit called a Summary Proceeding, which is commonly called an eviction. There are two types of evictions:

- Non-payment – claims the tenant failed to pay the rent
- Holdover – claims the tenant failed to leave the property after their right to stay has ended

In both types of evictions, the landlord requests a judgment to evict the tenant. The judge may also order the tenant to pay past due rent to the landlord.

This guide is for non-payment evictions. It can help when:

- You are a landlord
- Your tenant has not paid the rent
- You want to file a Non-Payment Summary Proceeding to evict the tenant

You can also go to the court clerk's office for help. Court staff can give information on filing procedures, but they are not permitted to give legal advice and may not be able to answer all your questions.

If you need legal advice at any time during your case, talk to a lawyer. If you cannot afford a lawyer, or do not know how to find one, these resources may help you:

- Visit www.lawhelp.org/ny;
- Call the New York State Bar Association Lawyer Referral Service (toll free) at 1-800-342-3661
- Visit <https://nycourts.gov/courthelp/>, choose "Find a Lawyer" in the Quick Links Section, and click on "Lawyers"
- Ask at any courthouse about lawyer referral services

DIY (Do-It-Yourself) Program

You can use the court's online Do-It-Yourself (DIY) program at <https://www.nycourts.gov/CourtHelp/DIY/smallProperty.shtml> to complete your paperwork. The program will ask you questions to about your case and guide you step-by-step based on your responses. You can use the DIY program if:

- You do not have a lawyer
- You own fewer than three rental units
- You are the owner and landlord of the premises
- You are not a corporation or voluntary association
- The property is not rent regulated
- The tenant is still in possession of the premises
- The premises is located outside of New York City

If you do not have access to a computer, there are public access computer terminals you can use. Contact the court clerk's office to learn where the public access computer terminals in your county are located.

Where to start an eviction case

You must start an eviction case in the court where the rental property is located.

Rental property location	Court
Village	*Village Court
Town	Town Court
City	City Court
Nassau County	District Court
Suffolk County (EXCEPT towns of East Hampton, Riverhead, Shelter Island, Southampton, and Southold)	District Court
Suffolk County (Towns of East Hampton, Riverhead, Shelter Island, Southampton, and Southold)	Town or Village Court

****If a village does not have a Village Court, start the eviction case in the Town Court of the town that surrounds the village.***

In a City or District Court, a landlord that is a corporation or voluntary association must appear with a lawyer.

In a Town or Village Court, a landlord that is a corporation must appear in court with either a lawyer or with an authorized officer, director, or employee of the corporation.

What to do before starting a non-payment eviction case

If your tenant fails to pay the rent within five days of the date specified in a lease agreement, you must send the tenant, by certified mail, a written notice stating you have not received their rent payment. A **5-Day Notice of Past Due Rent** form is included in the Forms section of this guide.

Before you can start a non-payment eviction case, you must ask your tenant in writing to either pay the overdue rent or vacate the property (move out). This is called a **written demand**. You must also attach a Good Cause Eviction Law Notice to your written demand. A **Written Demand for Past Due Rent with Good Cause Eviction Law Notice** form is included in the Forms section of this guide.

You must have someone “serve” the tenant with the **written demand**. You cannot serve it yourself. A person who is over 18 years old and is not a party in the case must serve the tenant [see page 4 of this guide for the rules on “serving” legal papers].

The tenant has 14 days after the written demand is served to pay the overdue rent before you can start a non-payment eviction case.

If the tenant pays all the overdue rent within those 14 days, you cannot start a non-payment eviction case.

How to start a non-payment eviction case

If the tenant does not pay overdue rent within 14 days after being served with a written demand, you can file a non-payment eviction case with the court. To start the case, you must:

- Complete and file a **Notice of Petition – Nonpayment (UCS-LTN1)** form.

The form must:

- show the name and address of the court
- list the date and time the parties must go to court
- be signed by an attorney, judge, or court clerk

- Complete and file an **Eviction Petition – Nonpayment (UCS-LTN2)** form.

The form must:

- be completed by you (the landlord)
- list the name of every tenant you want evicted from the rental property
- give information about:
 - the rental property
 - why you want to evict the tenant
- attest that the property is registered with the city as a condition of legal rental if it is located in the City of Albany, Newburgh, or Syracuse

- have a Good Cause Eviction Law Notice attached

NOTE: Attach a copy of the written demand to the petition with proof that it was served on each tenant.

- Pay the court filing fee – Contact the Court Clerk’s Office for the fee amount
 - Once the fee is paid, the court clerk will:
 - assign an index number to your case
 - schedule a date and time for the case to be heard by the judge

NOTE: You must write the index number on the Notice of Petition and Petition before they are served on the tenant. You must write or type the index number on all other papers that you file with the court in your case.

Serving court papers

Please note that, if court papers are not served according to the general rules and methods of service described in this section, a tenant can use “improper service” as a defense to the eviction proceeding. There is more information about defenses later in this guide.

General rules about serving the court papers

- The landlord cannot serve the papers.
- The person who serves the papers must be over 18 years old and cannot be a party in the case.
- The papers cannot be served on any day of religious observance.
- Each tenant that is listed as a respondent in the case must be served with the papers.
- The Notice of Petition and Petition must be served on the tenants no more than 17 days and no less than 10 days before the court date on the Notice of Petition.
- The person who serves the papers must complete a separate Affirmation of Service form for each person they served.
- The completed Affirmation of Service form must be filed with the court no more than three days after the personal delivery or mailing.

Methods of Serving Court Papers

There are three ways that court papers can be delivered or “served”:

1. Personal Delivery

The person serving the papers must hand the papers to the tenant. This can be done anywhere (home, workplace, school, gym, etc.).

OR

2. Substituted Service

When the person serving the papers tries to serve the tenant at home and the tenant is not there, the server can give the papers to the person who answers the door as long as:

- the person lives or works in the property; and
- is an appropriate age and has appropriate judgment to take the papers

Then, no later than the next business day, the server must mail two copies of the papers to the tenant – one by regular mail and one by certified mail.

OR

3. Conspicuous Place Service (also known as “Nail and Mail”)

When the person serving the papers cannot serve by either personal delivery or substituted service on their first try, they must make a second attempt at a different time. For example, if no one is home during business hours (9:00AM to 5:00PM), the server can try again at 7:30PM when the tenant might be home from work. After two unsuccessful attempts to serve the tenant by either personal delivery or substituted service, the server is then allowed to use conspicuous place service.

Conspicuous place service requires the person serving the papers to either:

- attach the papers to the tenant’s front door, or
- slip the papers under the tenant’s front door

Then, no later than the next business day, the server must mail two copies of the papers to the tenant – one by regular mail and one by certified mail.

What happens in court?

You must “appear” (go to court) on the date and time specified in the Notice of Petition. If you “default” (do not appear on the court date), the judge can dismiss your case against the tenant. If the tenant “defaults” (does not appear on the court date), the judge can grant a judgment of eviction against the tenant without a trial.

Bring your evidence and witnesses to court with you.

Evidence might include:

- a lease or other written agreement between you and the tenant
- rent statements or receipts
- bounced checks
- photographs showing the condition of the rental property

Witnesses may testify about:

- your rental property
- your tenant

When your case is called, follow the judge's and court clerk's directions.

The judge may ask you and your tenant:

- if you are the people named in the Notice of Petition and Petition
- if you want to try settling the case without a trial
- if you want to try mediation
- if a trial is necessary

What are the differences between settlement, mediation, and trial?

Settlement

A settlement is an agreement between you and your tenant that resolves the case without a trial. The terms of settlement are negotiated between you and your tenant. For example, the terms of a settlement might include:

- tenant agrees to pay overdue rent by a specified date if you make certain repairs to the rental property by a specified date
- landlord allows the tenant to stay in the rental property for a certain period of time so the tenant can find another place to live
- landlord and tenant agree to the judge entering a judgment of eviction against the tenant, but delaying when it will happen until a specified date

Some courts call a settlement a "stipulation and agreement." The judge may read the settlement out loud in court to avoid any misunderstanding about what each party has agreed to do.

Mediation

In some courts, you and your tenant can agree to have a mediator handle your case instead of the judge. A mediator is a professional, neutral (impartial) person trained to help you and your tenant reach an agreement about your case without needing a judge to decide it.

Trial

If you and your tenant cannot settle the case, the judge will hold a trial. During the trial, you must offer evidence to show the court why your tenant should be evicted. The judge will give the tenant a chance to ask you questions about your evidence. The judge may also ask you questions about your evidence. Then, the tenant will offer evidence, including any witnesses they may have. The judge will give you a chance to ask questions about the tenant's evidence, and the judge may also ask the tenant questions about their evidence.

During the trial, the tenant may claim certain defenses. Some of the more common defenses used by tenants are:

- The landlord did not make a written demand for the rent before starting the eviction case
- The landlord did not follow the rules for serving the Notice of Petition and Petition
- The person named as the “petitioner” in the case (usually you as the landlord) is not a person authorized to file a non-payment eviction proceeding
- The overdue rent amount is wrong
- The tenant paid some or all of the overdue rent
- The tenant tried to pay the rent but the landlord refused to accept it
- The landlord owes the tenant money for a rent overcharge
- Conditions in the rental property make it unsafe and/or unlivable for the tenant

After all the evidence has been presented, the judge will make a decision.

The judge’s decision

The judge may:

- reject your claims, decide in the tenant’s favor, and dismiss the lawsuit. This means that you cannot evict your tenant on this lawsuit; OR
- decide the case in your favor and award you a judgment giving you the right to:
 - evict your tenant
 - take back possession of the rental property
 - collect overdue rent

Even if you win a judgment, the judge may “stay” (delay) the eviction date giving the tenant some time to find another place to live.

The court clerk will issue a judgment order and warrant of eviction. Once the judge signs the order and warrant you must bring the papers to an enforcement officer to have your tenant removed from the property.

An enforcement officer may be a:

- sheriff
- constable
- marshal

Only an enforcement officer — not the landlord — can evict a tenant after the landlord wins a judgment. Contact the enforcement officer for more information about their procedures and fees.

The enforcement officer must give the tenant 14 days written notice that they will be evicted if they do not leave the rental property. The enforcement officer can remove them and their personal possessions from the rental property if they do not leave.

After a judgment

Order to Show Cause

After you win a judgment, your tenant(s) may ask the judge to re-open the case for one or more reasons by filing an:

- Order to Show Cause
- Affidavit in Support of Order to Show Cause

If you are served with an Order to Show Cause, read it carefully. The Order to Show Cause will have a court date and time, and you must go to court on that date and time. The Affidavit in Support of Order to Show Cause will give the reasons your tenant is asking to re-open the case. The Order to Show Cause “stays” (delays) the eviction until the judge hears and decides it.

Appeals

You and the tenant both have the right to appeal the judge’s decision if you disagree with it. When you appeal, the judge’s decision is reviewed by a higher court. There are strict time limits to file an appeal, so if you want to appeal, ask the court clerk about the procedures to file an appeal right away.

FORMS

5-Day Notice of Past Due Rent

Page 1 of 1

Landlord:

Tenants:

Property Description

- Property address: _____
- Apartment number: _____
- Number of rooms: _____
- On what floor(s): _____
- On what side [check all that apply]: ☐left ☐right ☐front ☐back ☐middle

This property is used as a [check one]: ☐business ☐residence

List the names of every tenant, under-tenant, assignee, and person in possession of the premises:

- | | |
|----------|-----------|
| 1. _____ | 7. _____ |
| 2. _____ | 8. _____ |
| 3. _____ | 9. _____ |
| 4. _____ | 10. _____ |
| 5. _____ | 11. _____ |
| 6. _____ | 12. _____ |

[If you need more space to list tenants, please attach an extra sheet to this form.]

NOTICE

To the above-listed tenants, under-tenants, assignees, and other persons in possession of the premises:

- In your lease, you agreed to pay your rent on or before the _____ day of each month.
- You have not paid the rent for the month of _____, **20**____ and it is more than five days past the due date.
- The total rent owed is \$_____.
- You must either pay the total rent owed, or an eviction case will be filed against you in court.

Landlord or Agent Signature

Print Landlord or Agent Name

____/____/____
Date

Landlord or Agent Address

(____) ____ - ____
Landlord or Agent Phone

Landlord or Agent Email

Written Demand for Past Due Rent with Good Cause Eviction Law Notice [RPL 231-c]

Page 1 of 7

Landlord:

Tenants:

Property Description

- Property address: _____
- Apartment number: _____
- Number of rooms: _____
- On what floor(s): _____
- On what side (check all that apply): ☐left ☐right ☐front ☐back ☐middle

This property is used as a (check one): ☐business ☐residence

List the names of every tenant, under-tenant, assignee, and person in possession of the premises:

- | | |
|----------|-----------|
| 1. _____ | 7. _____ |
| 2. _____ | 8. _____ |
| 3. _____ | 9. _____ |
| 4. _____ | 10. _____ |
| 5. _____ | 11. _____ |
| 6. _____ | 12. _____ |

(If you need more space to list tenants, please attach an extra sheet to this form.)

NOTICE

To the above-listed tenants, under-tenants, assignees, and other persons in possession of the premises, you owe rent for the following month(s):

\$_____ for month of _____, 20__	\$_____ for month of _____, 20__
\$_____ for month of _____, 20__	\$_____ for month of _____, 20__
\$_____ for month of _____, 20__	\$_____ for month of _____, 20__
\$_____ for month of _____, 20__	\$_____ for month of _____, 20__

The total rent now owed is \$_____.

You must either pay the total rent owed or move out of the premises within 14 days after you are served with this notice, or the landlord will start an eviction case against you in court.

A copy of **Notice to Tenant of Applicability or Inapplicability of the New York State Good Cause Eviction Law** is attached.

Landlord or Agent Signature

Print Landlord or Agent Name

____/____/____
Date

Landlord or Agent Address

(____) ____-____
Landlord or Agent Phone

Landlord or Agent Email

NOTICE TO TENANT OF APPLICABILITY OR INAPPLICABILITY OF THE NEW YORK STATE GOOD CAUSE EVICTION LAW

This notice from your landlord serves to inform you of whether or not your unit/apartment/home is covered by the New York State Good Cause Eviction Law (Article 6-A of the Real Property Law) and, if applicable, the reason permitted under the New York State Good Cause Eviction Law that your landlord is not renewing your lease. Even if your apartment is not protected by Article 6-A, known as the New York State Good Cause Eviction Law, you may have other rights under other local, state, or federal laws and regulations concerning rents and evictions. This notice, which your landlord is required to fill out and give to you, does not constitute legal advice. You may wish to consult a lawyer if you have any questions about your rights under the New York State Good Cause Eviction Law or about this notice.

NOTICE (THIS SHOULD BE FILLED OUT BY YOUR LANDLORD)

UNIT INFORMATION

STREET: _____

UNIT OR APARTMENT NUMBER: _____

CITY/TOWN/VILLAGE: _____

STATE: _____

ZIP CODE: _____

1. IS THIS UNIT SUBJECT TO ARTICLE 6-A OF THE REAL PROPERTY LAW, KNOWN AS THE NEW YORK STATE GOOD CAUSE EVICTION LAW? (PLEASE MARK APPLICABLE ANSWER) ☐ YES ☐ NO

2. IF THE UNIT IS EXEMPT FROM ARTICLE 6-A OF THE REAL PROPERTY LAW, KNOWN AS THE NEW YORK STATE GOOD CAUSE EVICTION LAW, WHY IS IT EXEMPT FROM THAT LAW? (PLEASE MARK ALL APPLICABLE EXEMPTIONS)

☐ A. Village/Town/City outside of New York City has not adopted good cause eviction under section 213 of the Real Property Law;

☐ B. Unit is owned by a "small landlord," as defined in subdivision 3 of section 211 of the Real Property Law, who owns no more than 10 units for small landlords located in New York City or the number of units established as the maximum amount a "small landlord" can own in the state by a local law of a village, town, or city, other than New York City, adopting the provisions of Article 6-A of the Real Property Law, known as the New York State Good Cause Eviction Law, or no more than 10 units, as applicable. In connection with any eviction proceeding in which the landlord claims an exemption from the provisions of Article 6-A of the Real Property Law, known as the New York State Good Cause Eviction Law, on the basis of being a small landlord, the landlord shall provide to the tenant or tenants subject to the proceeding the name of each natural person who owns or is a beneficial owner of, directly or indirectly, in whole or in part, the housing accommodation at issue in the proceeding, the number of units owned, jointly or separately, by each such natural person owner, and the addresses of any such units, excluding each natural person owner's principal residence. If the landlord is an entity, organized under the laws of this state or of any other jurisdiction, then such landlord shall provide to the tenant or tenants subject to the proceeding the name of each natural person with a direct or indirect ownership interest in such entity or any affiliated entity, the

number of units owned, jointly or separately, by each such natural person owner, and the addresses of any such units, excluding each natural person owner's principal residence (exemption under subdivision 1 of section 214 of the Real Property Law);

☐ C. Unit is located in an owner-occupied housing accommodation with no more than 10 units (exemption under subdivision 2 of section 214 of the Real Property Law);

☐ D. Unit is subject to regulation of rents or evictions pursuant to local, state, or federal law (exemption under subdivision 5 of section 214 of the Real Property Law);

☐ E. Unit must be affordable to tenants at a specific income level pursuant to statute, regulation, restrictive declaration, or pursuant to a regulatory agreement with a local, state, or federal government entity (exemption under subdivision 6 of section 214 of the Real Property Law);

☐ F. Unit is on or within a housing accommodation owned as a condominium or cooperative, or unit is on or within a housing accommodation subject to an offering plan submitted to the office of the attorney general (exemption under subdivision 7 of section 214 of the Real Property Law);

☐ G. Unit is in a housing accommodation that was issued a temporary or permanent certificate of occupancy within the past 30 years (only if building received the certificate on or after January 1st, 2009) (exemption under subdivision 8 of section 214 of the Real Property Law);

☐ H. Unit is a seasonal use dwelling unit under subdivisions 4 and 5 of section 7-108 of the General Obligations Law (exemption under subdivision 9 of section 214 of the Real Property Law);

☐ I. Unit is in a hospital as defined in subdivision 1 of section 2801 of the Public Health Law, continuing care retirement community licensed pursuant to Article 46 or 46-A of the Public Health Law, assisted living residence licensed pursuant to Article 46-B of the Public Health Law, adult care facility licensed pursuant to Article 7 of the Social Services Law, senior residential community that has submitted an offering plan to the attorney general, or not-for-profit independent retirement community that offers personal emergency response, housekeeping, transportation and meals to their residents (exemption under subdivision 10 of section 214 of the Real Property Law);

☐ J. Unit is a manufactured home located on or in a manufactured home park as defined in section 233 of the Real Property Law (exemption under subdivision 11 of section 214 of the Real Property Law);

☐ K. Unit is a hotel room or other transient use covered by the definition of a class B multiple dwelling under subdivision 9 of section 4 of the Multiple Dwelling Law (exemption under subdivision 12 of section 214 of the Real Property Law);

☐ L. Unit is a dormitory owned and operated by an institution of higher education or a school (exemption under subdivision 13 of section 214 of the Real Property Law);

☐ M. Unit is within and for use by a religious facility or institution (exemption under subdivision 14 of section 214 of the Real Property Law);

- ☐ N. Unit has a monthly rent that is greater than the percent of fair market rent established in a local law of a village, town, or city, other than New York City, adopting the provisions of Article 6-A of the Real Property Law, known as the New York Good Cause Eviction Law, or 245 percent of the fair market rent, as applicable. Fair market rent refers to the figure published by the United States Department of Housing and Urban Development, for the county in which the housing accommodation is located, as shall be published by the Division of Housing and Community Renewal no later than August 1st in any given year. The Division of Housing and Community Renewal shall publish the fair market rent and 245 percent of the fair market rent for each unit type for which such fair market rent is published by the United States Department of Housing and Urban Development for each county in New York State in the annual publication required pursuant to subdivision 7 of section 211 of the Real Property Law (exemption under subdivision 15 of section 214 of the Real Property Law);

3. IF THIS UNIT IS SUBJECT TO ARTICLE 6-A OF THE REAL PROPERTY LAW, KNOWN AS THE NEW YORK STATE GOOD CAUSE EVICTION LAW, AND THIS NOTICE SERVES TO INFORM A TENANT THAT THE LANDLORD IS INCREASING THE RENT ABOVE THE THRESHOLD FOR PRESUMPTIVELY UNREASONABLE RENT INCREASES, WHAT IS THE LANDLORD'S JUSTIFICATION FOR INCREASING THE RENT ABOVE THE THRESHOLD FOR PRESUMPTIVELY UNREASONABLE RENT INCREASES? (A rent increase is presumptively unreasonable if the increase from the prior rent is greater than the lower of:
- (a) 5 percent plus the annual percentage change in the consumer price index for all urban consumers for all items as published by the United States Bureau of Labor Statistics for the region in which the housing accommodation is located, as published not later than August 1st of each year by the Division of Housing and Community Renewal; or
 - (b) 10 percent.)
- (PLEASE MARK AND FILL OUT THE APPLICABLE RESPONSE)

- ☐ A. The rent is not being increased above the threshold for presumptively unreasonable rent increases described above;

- ☐ B. The rent is being increased above the threshold for presumptively unreasonable rent increases described above;

B-1: If the rent is being increased above the threshold for presumptively unreasonable rent increases described above, what is the justification for the increase:

4. IF THIS UNIT IS SUBJECT TO ARTICLE 6-A OF THE REAL PROPERTY LAW, KNOWN AS THE NEW YORK STATE GOOD CAUSE EVICTION LAW, AND THIS NOTICE SERVES TO INFORM A TENANT THAT THE LANDLORD IS NOT RENEWING A LEASE, WHAT IS THE GOOD CAUSE FOR NOT RENEWING THE LEASE?
(PLEASE MARK ALL APPLICABLE REASONS)

- ☐ A. This unit is exempt from Article 6-A of the Real Property Law, known as the New York State Good Cause Eviction Law, for the reasons stated in response to question 2, above
(IF THIS ANSWER IS CHECKED, NO OTHER ANSWERS TO THIS QUESTION SHOULD BE CHECKED);

- ☐ B. The tenant is receiving this notice in connection with a first lease or a renewal lease, so the landlord does not need to check any of the lawful reasons listed below for not renewing a lease under Article 6-A of the Real Property Law, known as the New York State Good Cause Eviction Law (IF THIS ANSWER IS CHECKED, NO OTHER ANSWERS TO THIS QUESTION SHOULD BE CHECKED);
- ☐ C. The landlord is not renewing the lease because the unit is sublet and the sublessor seeks in good faith to recover possession of the unit for their own personal use and occupancy (exemption under subdivision 3 of section 214 of the Real Property Law);
- ☐ D. The landlord is not renewing the lease because the possession, use or occupancy of the unit is solely incident to employment and the employment is being or has been lawfully terminated (exemption under subdivision 4 of section 214 of the Real Property Law);
- ☐ E. The landlord is not renewing the lease because the tenant has failed to pay rent due and owing, and the rent due or owing, or any part thereof, did not result from a rent increase which is unreasonable. A rent increase is presumptively unreasonable if the increase from the prior rent is greater than the lower of:
 - (a) 5 percent plus the annual percentage change in the consumer price index for all urban consumers for all items as published by the United States Bureau of Labor Statistics for the region in which the housing accommodation is located, as published not later than August 1st of each year by the Division of Housing and Community Renewal; or
 - (b) 10 percent(good cause for eviction under paragraph a of subdivision 1 of section 216 of the Real Property Law);
- ☐ F. The landlord is not renewing the lease because the tenant is violating a substantial obligation of their tenancy or breaching any of the landlord's rules and regulations governing the premises, other than the obligation to surrender possession of the premises, and the tenant has failed to cure the violation after written notice that the violation must cease within 10 days of receipt of the written notice. For this good cause to apply, the obligation the tenant violated cannot be an obligation that was imposed for the purpose of circumventing the intent of Article 6-A of the Real Property Law, known as the New York State Good Cause Eviction Law. The landlord's rules or regulations that the tenant has violated also must be reasonable and have been accepted in writing by the tenant or made a part of the lease at the beginning of the lease term (good cause for eviction under paragraph b of subdivision 1 of section 216 of the Real Property Law);
- ☐ G. The landlord is not renewing the lease because the tenant is either
 - (a) committing or permitting a nuisance on the unit or the premises;
 - (b) maliciously or grossly negligently causing substantial damage to the unit or the premises;
 - (c) interfering with the landlord's, another tenant's, or occupants of the same or an adjacent building or structure's comfort and safety(good cause for eviction under paragraph c of subdivision 1 of section 216 of the Real Property Law);
- ☐ H. The landlord is not renewing the lease because the tenant's occupancy of the unit violates law and the landlord is subject to civil or criminal penalties for continuing to let the tenant occupy the unit. For this good cause to apply, a state or municipal agency having jurisdiction must have issued an order requiring the tenant to vacate the unit. No

tenant shall be removed from possession of a unit on this basis unless the court finds that the cure of the violation of law requires the removal of the tenant and that the landlord did not, through neglect or deliberate action or failure to act, create the condition necessitating the vacate order. If the landlord does not try to cure the conditions causing the violation of the law, the tenant has the right to pay or secure payment, in a manner satisfactory to the court, to cure the violation. Any tenant expenditures to cure the violation shall be applied against rent owed to the landlord. Even if removal of a tenant is absolutely essential to the tenant's health and safety, the tenant shall be entitled to resume possession at such time as the dangerous conditions have been removed. The tenant also retains the right to bring an action for monetary damages against the landlord or to otherwise compel the landlord to comply with all applicable state or municipal housing codes (good cause for eviction under paragraph d of subdivision 1 of section 216 of the Real Property Law);

- ☐ I. The landlord is not renewing the lease because the tenant is using or permitting the unit or premises to be used for an illegal purpose (good cause for eviction under paragraph e of subdivision 1 of section 216 of the Real Property Law);
- ☐ J. The landlord is not renewing the lease because the tenant has unreasonably refused the landlord access to the unit for the purposes of making necessary repairs or improvements required by law or for the purposes of showing the premises to a prospective purchaser, mortgagee, or other person with a legitimate interest in the premises (good cause for eviction under paragraph f of subdivision 1 of section 216 of the Real Property Law);
- ☐ K. The landlord is not renewing the lease because the landlord seeks in good faith to recover possession of the unit for the landlord's personal use and occupancy as the landlord's principal residence, or for the personal use and occupancy as a principal residence by the landlord's spouse, domestic partner, child, stepchild, parent, step-parent, sibling, grandparent, grandchild, parent-in-law, or sibling-in-law. The landlord can only recover the unit for these purposes if there is no other suitable housing accommodation in the building that is available. Under no circumstances can the landlord recover the unit for these purposes if the tenant is
 - (a) 65 years old or older; or
 - (b) a "disabled person" as defined in subdivision 6 of section 211 of the Real Property Law. To establish this good cause in an eviction proceeding, the landlord must establish good faith to recover possession of a housing accommodation for the uses described herein by clear and convincing evidence(good cause for eviction under paragraph g of subdivision 1 of section 216 of the Real Property Law);
- ☐ L. The landlord is not renewing the lease because the landlord in good faith seeks to demolish the housing accommodation. To establish this good cause in an eviction proceeding, the landlord must establish good faith to demolish the housing accommodation by clear and convincing evidence (good cause for eviction under paragraph h of subdivision 1 of section 216 of the Real Property Law);
- ☐ M. The landlord is not renewing the lease because the landlord seeks in good faith to withdraw the unit from the housing rental market. To establish this good cause in an eviction proceeding, the landlord must establish good faith to withdraw the unit from the rental housing market by clear and convincing evidence (good cause for eviction under paragraph i of subdivision 1 of section 216 of the Real Property Law);

- ☐ N. The landlord is not renewing the lease because the tenant has failed to agree to reasonable changes at lease renewal, including reasonable increases in rent, and the landlord gave written notice of the changes to the lease to the tenant at least 30 days, but no more than 90 days, before the current lease expired. A rent increase is presumptively unreasonable if the increase from the prior rent is greater than the lower of:
- (a) 5 percent plus the annual percentage change in the consumer price index for all urban consumers for all items as published by the United States Bureau of Labor Statistics for the region in which the housing accommodation is located, as published by August 1st of each year by the Division of Housing and Community Renewal; or
 - (b) 10 percent
- (good cause for eviction under paragraph j of subdivision 1 of section 216 of the Real Property Law).

		____/____/____
Landlord or Agent Signature	Print Landlord or Agent Name	Date
Landlord or Agent Address		
(____) ____ - ____		
Landlord or Agent Phone	Landlord or Agent Email	

**Notice of Court Date: Rent Not Paid**

Landlord: attach this form to your petition. If you want an eviction for reasons other than unpaid rent, this is the wrong form. Use form UCS-LTH1 instead.

UCS-LTN1 (08/2024)

Page 1 of 2

nycourthelp.govCounty of _____ ☐ City ☐ Town ☐ Village ☐ District Court

Index Number: _____

Name of Court: _____

Landlord: the name of the court is usually a location, like Buffalo City Court or Concord Town Court.
For Suffolk County District Court, write the district numbers and location, like 2nd District Lindenhurst.

TO: Tenant (Respondent): _____

Names of all tenants the landlord is asking the court to evict.

Tenant's Address: _____**FROM: Landlord (Petitioner):** _____

Name of landlord or owner asking the court to evict the tenant.

Landlord's Address: _____

Landlord: write your business address if you have one or your home address if you don't.

Landlord's Phone No.: _____

Landlord: write your business number if you have one or your home number if you don't.

Warning! Your landlord claims you owe back rent and is asking the court to evict you if you do not pay. If you do not want to be evicted, you **must** go to court on the date and time below. If your name is not on this form but you live at this address, you have a right to go to court.

Go to Court on

Date: _____ (mm/dd/yyyy)

Time: _____ ☐ AM ☐ PM

Court address: _____

Courtroom #: _____

Acuda al tribunal

Fecha

Hora

Dirección del tribunal

de sala

**Landlord's Reason to Ask for Eviction**

1. Your landlord says you owe **back rent**. Look at the Eviction Petition that came with this Notice for how much the landlord thinks you owe.
2. Your landlord is asking the court to make a judgment ordering you to pay back rent. If you agree with the amount the landlord thinks you owe and you pay the landlord, the court will dismiss the case. Take your payment or proof of payment to court.

How to Respond to the Petition

1. Your response to the Petition is called an Answer. You can speak your Answer when you go to court. Or you can write it and bring it with you.
2. **Your Answer tells your side of the case and the reasons why you should be allowed to stay. These reasons are called defenses.** If you do not tell the court about a defense, you might not be able to use it to support your case or any other case. You can also talk about money that the landlord owes you. These are called counterclaims. Learn more about Answers at: nycourts.gov/forms/landlordtenant/.

Need more time to get ready for court?

You have a right to postpone the case for 14 days, but you must go to court and ask for the postponement.

[\(RPAPL 745\)](#)

ADA Accommodations
ada@nycourts.gov



Spoken or Sign Language Interpreters
interpreter@nycourts.gov



1-800-COURT-NY
(268-7869)

Landlord's Lawyer's Signature (Landlord: If you do not have a lawyer, skip this section and bring your papers to court for the judge or clerk to sign. If you do have a lawyer, ask your lawyer to fill in this section.)

 Lawyer Signature Print Lawyer Name Date ____/____/____

 Lawyer Address

(____) ____-____
 Lawyer Phone

 Lawyer Email

Court Signature (The court's signature is required if the landlord does not have a lawyer.)

 Signature of ☐ Judge ☐ Clerk Judge/Clerk Name Date ____/____/____

Resources for Landlords and Renters

Translation of this Form

nycourts.gov/forms/landlordtenant/

- Spanish | español
- ASL | Video 



Free Interpreters

Spoken & Sign Language

1-800-COURT-NY

(1-800-268-7869)

nycourts.gov/courtinterpreter

courtinterpreter@nycourts.gov



Find a Lawyer Legal Help & Information



- nycourts.gov/courthelp/Homes/evictions.shtml
- lawhelpny.org
- tenanthelpny.org
- NYS Bar Association Lawyer Referral Service (low cost), findalawyernys.org



ADA Accommodations

1-800-COURT-NY

(1-800-268-7869)

nycourts.gov/accessibility

ada@nycourts.gov

Financial Help from 2-1-1

- Call 211
- Go to www.211.org
- Get 211 help at some courthouses



**Eviction Petition – Nonpayment**
Recover Possession of Real Property [RPAPL 711]

UCS-LTN2 (03/2025)

Page 1 of 8

nycourthelp.gov

_____ Court

County of _____

Landlord/Petitioner (person/entity that started the case):

Index Number:

Tenants/Respondents (persons whom the case is against):

I am the landlord of the premises located at the following address:

The tenants listed below are in possession of the premises (list the names of every tenant, under-tenant, assignee, and person occupying the premises):

- | | |
|----------|-----------|
| 1. _____ | 7. _____ |
| 2. _____ | 8. _____ |
| 3. _____ | 9. _____ |
| 4. _____ | 10. _____ |
| 5. _____ | 11. _____ |
| 6. _____ | 12. _____ |

The tenants agreed to pay \$_____ rent per month due on the _____ day of each month.

The tenants have not made the agreed rent payments.

The tenants owe rent for the following months (list the amount owed for each month):

\$_____ for month of _____, 20__	\$_____ for month of _____, 20__
\$_____ for month of _____, 20__	\$_____ for month of _____, 20__
\$_____ for month of _____, 20__	\$_____ for month of _____, 20__
\$_____ for month of _____, 20__	\$_____ for month of _____, 20__
\$_____ for month of _____, 20__	\$_____ for month of _____, 20__

The total amount of rent owed is: \$_____.

I sent the tenants a written 5-day late rent notice by certified mail stating I did not receive their rent payment, and it is more than five days past the monthly due date specified in their lease. A copy of the 5-day late rent notice and proof of mailing (copy of the certified mail return receipt) are attached.

The tenants were served with a written demand to pay past due rent instructing them to pay the rent owed or to move out within 14 days. A copy of the form and proof (affidavit or affirmation) of service are attached.

A copy of **Notice to Tenant of Applicability or Inapplicability of the New York State Good Cause Eviction Law** is attached.

The tenants continue to occupy the premises without permission after failing to pay the rent.



I am asking the court to:

- return possession of the premises to the landlord
- issue a warrant of eviction to remove the tenants from the premises
- issue a judgment against the tenants for
 - rent owed in the amount of \$ _____
 - rent accrued from the time the petition is filed until the judgment is rendered
 - court costs
- grant any other relief that is just and proper

VERIFICATION

STATE OF NEW YORK, COUNTY OF _____

_____, being duly sworn, states the following:

1. I am the petitioner in this case.
2. I have read this Petition to Recover Possession of Real Property – Nonpayment, and I know what it says.
3. The information above is true, accurate, and complete to the best of my knowledge and belief.

Petitioner Signature

Sworn to before me this _____
day of _____, 20____.

Notary Public

Resources for Landlords and Renters

Written Translation of this Form

nycourts.gov/forms/landlordtenant/

Spanish | español

ASL | 



Free Interpreters

Spoken & Sign Language

1-800-COURT-NY (1-800-268-7869)

nycourts.gov/courtinterpreter

courtinterpreter@nycourts.gov



Find a Lawyer, Legal Help & Information

- nycourts.gov/courthelp/Homes/evictions.shtml
- lawhelpnyc.org
- tenanthelpnyc.org
- NYS Bar Association Lawyer Referral Service (low cost), findalawyer.nys.org



ADA Accommodations

1-800-COURT-NY (1-800-268-7869)



nycourts.gov/accessibility

ada@nycourts.gov

Financial Help from 2-1-1

- Call 211
- Go to www.211.org
- Get 211 help at some courthouses



NOTICE TO TENANT OF APPLICABILITY OR INAPPLICABILITY OF THE NEW YORK STATE GOOD CAUSE EVICTION LAW

This notice from your landlord serves to inform you of whether or not your unit/apartment/home is covered by the New York State Good Cause Eviction Law (Article 6-A of the Real Property Law) and, if applicable, the reason permitted under the New York State Good Cause Eviction Law that your landlord is not renewing your lease. Even if your apartment is not protected by Article 6-A, known as the New York State Good Cause Eviction Law, you may have other rights under other local, state, or federal laws and regulations concerning rents and evictions. This notice, which your landlord is required to fill out and give to you, does not constitute legal advice. You may wish to consult a lawyer if you have any questions about your rights under the New York State Good Cause Eviction Law or about this notice.

NOTICE (THIS SHOULD BE FILLED OUT BY YOUR LANDLORD)

UNIT INFORMATION

STREET: _____

UNIT OR APARTMENT NUMBER: _____

CITY/TOWN/VILLAGE: _____

STATE: _____

ZIP CODE: _____

1. IS THIS UNIT SUBJECT TO ARTICLE 6-A OF THE REAL PROPERTY LAW, KNOWN AS THE NEW YORK STATE GOOD CAUSE EVICTION LAW? (PLEASE MARK APPLICABLE ANSWER) ☐ YES ☐ NO

2. IF THE UNIT IS EXEMPT FROM ARTICLE 6-A OF THE REAL PROPERTY LAW, KNOWN AS THE NEW YORK STATE GOOD CAUSE EVICTION LAW, WHY IS IT EXEMPT FROM THAT LAW? (PLEASE MARK ALL APPLICABLE EXEMPTIONS)

- ☐ A. Village/Town/City outside of New York City has not adopted good cause eviction under section 213 of the Real Property Law;
- ☐ B. Unit is owned by a "small landlord," as defined in subdivision 3 of section 211 of the Real Property Law, who owns no more than 10 units for small landlords located in New York City or the number of units established as the maximum amount a "small landlord" can own in the state by a local law of a village, town, or city, other than New York City, adopting the provisions of Article 6-A of the Real Property Law, known as the New York State Good Cause Eviction Law, or no more than 10 units, as applicable. In connection with any eviction proceeding in which the landlord claims an exemption from the provisions of Article 6-A of the Real Property Law, known as the New York State Good Cause Eviction Law, on the basis of being a small landlord, the landlord shall provide to the tenant or tenants subject to the proceeding the name of each natural person who owns or is a beneficial owner of, directly or indirectly, in whole or in part, the housing accommodation at issue in the proceeding, the number of units owned, jointly or separately, by each such natural person owner, and the addresses of any such units, excluding each natural person owner's principal residence. If the landlord is an entity, organized under the laws of this state or of any other jurisdiction, then such landlord shall provide to the tenant or tenants subject to the proceeding the name of each natural person with a direct or indirect ownership interest in such entity or any affiliated entity, the

number of units owned, jointly or separately, by each such natural person owner, and the addresses of any such units, excluding each natural person owner's principal residence (exemption under subdivision 1 of section 214 of the Real Property Law);

☐ C. Unit is located in an owner-occupied housing accommodation with no more than 10 units (exemption under subdivision 2 of section 214 of the Real Property Law);

☐ D. Unit is subject to regulation of rents or evictions pursuant to local, state, or federal law (exemption under subdivision 5 of section 214 of the Real Property Law);

☐ E. Unit must be affordable to tenants at a specific income level pursuant to statute, regulation, restrictive declaration, or pursuant to a regulatory agreement with a local, state, or federal government entity (exemption under subdivision 6 of section 214 of the Real Property Law);

☐ F. Unit is on or within a housing accommodation owned as a condominium or cooperative, or unit is on or within a housing accommodation subject to an offering plan submitted to the office of the attorney general (exemption under subdivision 7 of section 214 of the Real Property Law);

☐ G. Unit is in a housing accommodation that was issued a temporary or permanent certificate of occupancy within the past 30 years (only if building received the certificate on or after January 1st, 2009) (exemption under subdivision 8 of section 214 of the Real Property Law);

☐ H. Unit is a seasonal use dwelling unit under subdivisions 4 and 5 of section 7-108 of the General Obligations Law (exemption under subdivision 9 of section 214 of the Real Property Law);

☐ I. Unit is in a hospital as defined in subdivision 1 of section 2801 of the Public Health Law, continuing care retirement community licensed pursuant to Article 46 or 46-A of the Public Health Law, assisted living residence licensed pursuant to Article 46-B of the Public Health Law, adult care facility licensed pursuant to Article 7 of the Social Services Law, senior residential community that has submitted an offering plan to the attorney general, or not-for-profit independent retirement community that offers personal emergency response, housekeeping, transportation and meals to their residents (exemption under subdivision 10 of section 214 of the Real Property Law);

☐ J. Unit is a manufactured home located on or in a manufactured home park as defined in section 233 of the Real Property Law (exemption under subdivision 11 of section 214 of the Real Property Law);

☐ K. Unit is a hotel room or other transient use covered by the definition of a class B multiple dwelling under subdivision 9 of section 4 of the Multiple Dwelling Law (exemption under subdivision 12 of section 214 of the Real Property Law);

☐ L. Unit is a dormitory owned and operated by an institution of higher education or a school (exemption under subdivision 13 of section 214 of the Real Property Law);

☐ M. Unit is within and for use by a religious facility or institution (exemption under subdivision 14 of section 214 of the Real Property Law);

- ☐ N. Unit has a monthly rent that is greater than the percent of fair market rent established in a local law of a village, town, or city, other than New York City, adopting the provisions of Article 6-A of the Real Property Law, known as the New York Good Cause Eviction Law, or 245 percent of the fair market rent, as applicable. Fair market rent refers to the figure published by the United States Department of Housing and Urban Development, for the county in which the housing accommodation is located, as shall be published by the Division of Housing and Community Renewal no later than August 1st in any given year. The Division of Housing and Community Renewal shall publish the fair market rent and 245 percent of the fair market rent for each unit type for which such fair market rent is published by the United States Department of Housing and Urban Development for each county in New York State in the annual publication required pursuant to subdivision 7 of section 211 of the Real Property Law (exemption under subdivision 15 of section 214 of the Real Property Law);

3. IF THIS UNIT IS SUBJECT TO ARTICLE 6-A OF THE REAL PROPERTY LAW, KNOWN AS THE NEW YORK STATE GOOD CAUSE EVICTION LAW, AND THIS NOTICE SERVES TO INFORM A TENANT THAT THE LANDLORD IS INCREASING THE RENT ABOVE THE THRESHOLD FOR PRESUMPTIVELY UNREASONABLE RENT INCREASES, WHAT IS THE LANDLORD'S JUSTIFICATION FOR INCREASING THE RENT ABOVE THE THRESHOLD FOR PRESUMPTIVELY UNREASONABLE RENT INCREASES? (A rent increase is presumptively unreasonable if the increase from the prior rent is greater than the lower of:
- (a) 5 percent plus the annual percentage change in the consumer price index for all urban consumers for all items as published by the United States Bureau of Labor Statistics for the region in which the housing accommodation is located, as published not later than August 1st of each year by the Division of Housing and Community Renewal; or
 - (b) 10 percent.)
- (PLEASE MARK AND FILL OUT THE APPLICABLE RESPONSE)

- ☐ A. The rent is not being increased above the threshold for presumptively unreasonable rent increases described above;

- ☐ B. The rent is being increased above the threshold for presumptively unreasonable rent increases described above;

B-1: If the rent is being increased above the threshold for presumptively unreasonable rent increases described above, what is the justification for the increase:

4. IF THIS UNIT IS SUBJECT TO ARTICLE 6-A OF THE REAL PROPERTY LAW, KNOWN AS THE NEW YORK STATE GOOD CAUSE EVICTION LAW, AND THIS NOTICE SERVES TO INFORM A TENANT THAT THE LANDLORD IS NOT RENEWING A LEASE, WHAT IS THE GOOD CAUSE FOR NOT RENEWING THE LEASE?
(PLEASE MARK ALL APPLICABLE REASONS)

- ☐ A. This unit is exempt from Article 6-A of the Real Property Law, known as the New York State Good Cause Eviction Law, for the reasons stated in response to question 2, above (IF THIS ANSWER IS CHECKED, NO OTHER ANSWERS TO THIS QUESTION SHOULD BE CHECKED);

- ☐ B. The tenant is receiving this notice in connection with a first lease or a renewal lease, so the landlord does not need to check any of the lawful reasons listed below for not renewing a lease under Article 6-A of the Real Property Law, known as the New York State Good Cause Eviction Law (IF THIS ANSWER IS CHECKED, NO OTHER ANSWERS TO THIS QUESTION SHOULD BE CHECKED);
- ☐ C. The landlord is not renewing the lease because the unit is sublet and the sublessor seeks in good faith to recover possession of the unit for their own personal use and occupancy (exemption under subdivision 3 of section 214 of the Real Property Law);
- ☐ D. The landlord is not renewing the lease because the possession, use or occupancy of the unit is solely incident to employment and the employment is being or has been lawfully terminated (exemption under subdivision 4 of section 214 of the Real Property Law);
- ☐ E. The landlord is not renewing the lease because the tenant has failed to pay rent due and owing, and the rent due or owing, or any part thereof, did not result from a rent increase which is unreasonable. A rent increase is presumptively unreasonable if the increase from the prior rent is greater than the lower of:
- (a) 5 percent plus the annual percentage change in the consumer price index for all urban consumers for all items as published by the United States Bureau of Labor Statistics for the region in which the housing accommodation is located, as published not later than August 1st of each year by the Division of Housing and Community Renewal; or
 - (b) 10 percent
- (good cause for eviction under paragraph a of subdivision 1 of section 216 of the Real Property Law);
- ☐ F. The landlord is not renewing the lease because the tenant is violating a substantial obligation of their tenancy or breaching any of the landlord's rules and regulations governing the premises, other than the obligation to surrender possession of the premises, and the tenant has failed to cure the violation after written notice that the violation must cease within 10 days of receipt of the written notice. For this good cause to apply, the obligation the tenant violated cannot be an obligation that was imposed for the purpose of circumventing the intent of Article 6-A of the Real Property Law, known as the New York State Good Cause Eviction Law. The landlord's rules or regulations that the tenant has violated also must be reasonable and have been accepted in writing by the tenant or made a part of the lease at the beginning of the lease term (good cause for eviction under paragraph b of subdivision 1 of section 216 of the Real Property Law);
- ☐ G. The landlord is not renewing the lease because the tenant is either
- (a) committing or permitting a nuisance on the unit or the premises;
 - (b) maliciously or grossly negligently causing substantial damage to the unit or the premises;
 - (c) interfering with the landlord's, another tenant's, or occupants of the same or an adjacent building or structure's comfort and safety
- (good cause for eviction under paragraph c of subdivision 1 of section 216 of the Real Property Law);
- ☐ H. The landlord is not renewing the lease because the tenant's occupancy of the unit violates law and the landlord is subject to civil or criminal penalties for continuing to let the tenant occupy the unit. For this good cause to apply, a state or municipal agency having jurisdiction must have issued an order requiring the tenant to vacate the unit. No

tenant shall be removed from possession of a unit on this basis unless the court finds that the cure of the violation of law requires the removal of the tenant and that the landlord did not, through neglect or deliberate action or failure to act, create the condition necessitating the vacate order. If the landlord does not try to cure the conditions causing the violation of the law, the tenant has the right to pay or secure payment, in a manner satisfactory to the court, to cure the violation. Any tenant expenditures to cure the violation shall be applied against rent owed to the landlord. Even if removal of a tenant is absolutely essential to the tenant's health and safety, the tenant shall be entitled to resume possession at such time as the dangerous conditions have been removed. The tenant also retains the right to bring an action for monetary damages against the landlord or to otherwise compel the landlord to comply with all applicable state or municipal housing codes (good cause for eviction under paragraph d of subdivision 1 of section 216 of the Real Property Law);

- ☐ I. The landlord is not renewing the lease because the tenant is using or permitting the unit or premises to be used for an illegal purpose (good cause for eviction under paragraph e of subdivision 1 of section 216 of the Real Property Law);
- ☐ J. The landlord is not renewing the lease because the tenant has unreasonably refused the landlord access to the unit for the purposes of making necessary repairs or improvements required by law or for the purposes of showing the premises to a prospective purchaser, mortgagee, or other person with a legitimate interest in the premises (good cause for eviction under paragraph f of subdivision 1 of section 216 of the Real Property Law);
- ☐ K. The landlord is not renewing the lease because the landlord seeks in good faith to recover possession of the unit for the landlord's personal use and occupancy as the landlord's principal residence, or for the personal use and occupancy as a principal residence by the landlord's spouse, domestic partner, child, stepchild, parent, step-parent, sibling, grandparent, grandchild, parent-in-law, or sibling-in-law. The landlord can only recover the unit for these purposes if there is no other suitable housing accommodation in the building that is available. Under no circumstances can the landlord recover the unit for these purposes if the tenant is
 - (a) 65 years old or older; or
 - (b) a "disabled person" as defined in subdivision 6 of section 211 of the Real Property Law. To establish this good cause in an eviction proceeding, the landlord must establish good faith to recover possession of a housing accommodation for the uses described herein by clear and convincing evidence(good cause for eviction under paragraph g of subdivision 1 of section 216 of the Real Property Law);
- ☐ L. The landlord is not renewing the lease because the landlord in good faith seeks to demolish the housing accommodation. To establish this good cause in an eviction proceeding, the landlord must establish good faith to demolish the housing accommodation by clear and convincing evidence (good cause for eviction under paragraph h of subdivision 1 of section 216 of the Real Property Law);
- ☐ M. The landlord is not renewing the lease because the landlord seeks in good faith to withdraw the unit from the housing rental market. To establish this good cause in an eviction proceeding, the landlord must establish good faith to withdraw the unit from the rental housing market by clear and convincing evidence (good cause for eviction under paragraph i of subdivision 1 of section 216 of the Real Property Law);

- ☐ N. The landlord is not renewing the lease because the tenant has failed to agree to reasonable changes at lease renewal, including reasonable increases in rent, and the landlord gave written notice of the changes to the lease to the tenant at least 30 days, but no more than 90 days, before the current lease expired. A rent increase is presumptively unreasonable if the increase from the prior rent is greater than the lower of:
- (a) 5 percent plus the annual percentage change in the consumer price index for all urban consumers for all items as published by the United States Bureau of Labor Statistics for the region in which the housing accommodation is located, as published by August 1st of each year by the Division of Housing and Community Renewal; or
 - (b) 10 percent
- (good cause for eviction under paragraph j of subdivision 1 of section 216 of the Real Property Law).

Landlord or Agent Signature Print Landlord or Agent Name Date ____/____/____

Landlord or Agent Address

(____) ____-____
Landlord or Agent Phone

Landlord or Agent Email

GLOSSARY

Action	A lawsuit or proceeding in a court.
Adjournment	Postponing a court date to another time.
Affidavit	A signed, written statement that is sworn before a notary and made under the penalties of perjury stating something is true or believed to be true.
Affidavit/Affirmation of service	A signed, written statement by someone over 18 years old who is not a party in the case saying they delivered certain legal papers or documents to someone.
Affirmation	A signed, written statement made under the penalties of perjury declaring something is true or believed to be true.
Agent	A person legally authorized to do business or manage legal affairs for someone else. For example, a property management company may be authorized as a landlord's agent.
Allegation	A statement or claim against someone that has not been proven to be true or false.
Allege	To say something that has not been proven is true.
Answer	A legal paper filed with the court by a respondent addressing the claims made in the petitioner's written complaint. An answer can give defenses to the petitioner's claims and/or make counterclaims.
Appearance	Going to court. (NOTE: If you do not have a lawyer, you must go to court in person. If you have a lawyer, you and your lawyer can go to court together, or your lawyer can go to court for you.)
Bench	Refers to the judge's seat ("the judge took the bench") and/or the judge ("the lawyer addressed the bench").
Calendar	A list of cases scheduled to be heard in court.
Calendar call	Calling the parties and/or their attorneys whose cases are scheduled in court that day to come up and stand in front of the judge.
Caption	Heading on legal papers that shows the court's name, party names, index number, and type of paper (for example, summons, complaint, answer, motion, etc.).
Case file	The court file containing papers submitted in a case.
Certified copy	A copy of a court paper officially marked as a true copy of the original by a court clerk.
Complaint	A legal paper filed with the court by a petitioner giving the petitioner's claims against the respondent.
Conspicuous	Obvious or easy to notice.

Costs	Expenses for prosecuting or defending a lawsuit (does not include lawyer's fees).
Counsel	Lawyer or attorney.
Cross-examination	Questioning an opposing party or witness called by the opposing side in a trial, hearing, or deposition.
Default	When a respondent does not answer or defend a lawsuit within the time allowed or does not appear for a trial.
Enforcement officer	An authority (usually a sheriff, constable, or marshal) who is legally authorized to carry out a court order or judgment.
Eviction	A court proceeding to remove a tenant who is occupying rental property.
Evidence	Testimony, records, documents, physical objects, etcetera, presented as proof at a court proceeding.
Exhibit	A document or physical object offered as evidence in a trial or hearing or attached to court papers.
Ex parte	A motion (application or request), proposed order, proceeding, or other submission to the court that is made without notifying the other parties in the case.
Fee	A fixed charge for a service.
Index number	A number issued by the court clerk that identifies a court case. (In civil matters, there is a fee to get an index number.)
Judgment	A final decision in a court case.
Landlord	The owner of a rental property.
Lease	A legal agreement that establishes the relationship between a landlord and tenant.
Motion	A request for a specified ruling, decision, or order by the court.
Mediation	A process where an impartial person who is not a party in the case helps the parties identify their issues, consider options, and reach a mutually agreeable solution to resolve their dispute outside of court.
Notice of petition	Written notice from the petitioner to the respondent that they are being sued and must come to court for a hearing about the relief (type of legal remedy or assistance) the petitioner has requested in the petition.
Oath	Swearing to tell the truth.
Order to show cause	A court order requiring a party to appear in court on a specific day and time to explain (show cause) why the court should or should not issue a court order for a specified relief (type of legal remedy or assistance someone wants from the court).
Party	A person who files a lawsuit or has a lawsuit filed against them in a court.

Petition	A written application filed with a court asking for a court order for a specific relief (type of legal remedy or assistance someone wants from the court).
Petitioner	A person who files a lawsuit (also known as a plaintiff).
Pleadings	Legal papers filed with the court by the parties in a lawsuit giving their respective claims and defenses (for example, a petition, complaint, answer, or reply).
Proceeding	A lawsuit filed and heard in a court.
Pro se	see Self-represented
Relief	The type of legal remedy or assistance someone wants from the court.
Reply	A legal paper filed with the court by a petitioner addressing any defenses and/or counterclaims in a respondent's written answer.
Respondent	A person a lawsuit is filed against (also known as a defendant).
Satisfaction	Paying an outstanding debt or fulfilling a legal obligation, claim, or judgment.
Self-represented	A person involved in a court case who does not have a lawyer (also known as pro se).
Service	Delivering legal papers to a person involved in a court case.
Stipulation of settlement	An agreement between the parties that resolves a lawsuit.
Stay	A court order that stops something from happening until a specific action is taken or the court lifts the order.
Sub-tenant	see Under-tenant
Tenant	A person who rents or leases a property owned by someone else (landlord) for a specific time period.
Testimony	Statements made by a witness under oath.
Trial	A formal court proceeding where parties give evidence (testimony, documents, etc.) to support their case and a judge decides the case based on the evidence.
Under-tenant	A person renting from the tenant who is named in the lease or rental agreement (also known as a sub-tenant).
Verification	A written statement declaring something is true or believed to be true that is signed and sworn in front of a notary or other officer authorized to administer oaths.
Warrant of eviction	A court order directing an enforcement officer to remove a person and their personal property from a premises.
Witness	A person who testifies to what they have seen, heard, or experienced.